



File No.: EXP202406164 (AI/00177/2024)

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On September 19, 2023, a complaint was filed with entry registration number ***REGISTRO.1 before the Spanish Agency for Data Protection against MARNUJUTRANS, S.L. with NIF B88271507 (hereinafter, MARNUJUTRANS). The reasons for the complaint are as follows:

The complainant states that they were the recipient of a package whose delivery management was carried out by the complained entity, having been delivered by a courier from the complained entity to the home of a neighbor of the complainant, without their consent, exposing the data included on the shipping label to their neighbor, including their postal data and phone number, which they consider to be a violation of data protection regulations.

Along with the notification, a thread of communications exchanged with the sending entity of the shipment and the delivery receipt of the package issued by the complained entity is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to MARNUJUTRANS for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on October 25, 2023, as recorded in the acknowledgment of receipt in the file.

On November 16, 2023, a response was received by this Agency indicating that the actions had been carried out by a collaborating freelancer, who made an unintentional error as this company did not intend to violate data protection regulations. It is a specific case, and the company has training procedures in place to ensure that employees understand and respect the privacy of recipients. Finally, MARNUJUTRANS informed that they attempted to coordinate the delivery with the client, carrying out a series of actions after the complaint was filed, such as opening an internal investigation, and adopted a series of additional measures.

THIRD: On December 19, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In this case, in accordance with the provisions of Article 4.1 of the GDPR, it is established that there has been a processing of personal data, since MARNUJUTRANS carries out, among other processes, the storage and use of the following personal data of individuals, such as: name, surname, identification number, location data, and phone number.

MARNUJUTRANS carries out this activity in its capacity as data controller, as it determines the purposes and means of such activity, by virtue of the aforementioned Article 4.7 of the GDPR. Article 4, paragraph 12 of the GDPR broadly defines "personal data security breaches" (hereinafter security breach) as "all breaches of security that result in the accidental or unlawful destruction, loss, alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data."

III

Presumption of Innocence

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In the present case, a claim is made due to the delivery of a package intended for the claimant to a neighbor of their residence, which leads the claimant to consider that the confidentiality of their personal data may have been compromised. Specifically, the claimant has stated that their data included on the shipping label, among others their postal address and phone number, were exposed to a third party (a neighbor of their residence), although they have not provided any evidence to substantiate the data that was actually displayed on the exterior of the delivered package.

This Agency understands that confidentiality will only be affected when access to personal data that is not public or previously known to that third party is made possible.

Thus, the delivery of a package to a neighbor of the recipient, with both residing in the same building, when the postal shipment does not include any additional data beyond what is strictly necessary for delivery (name and address), does not compromise the confidentiality of the recipient's personal data, as no personal data of the claimant that was not already known to the recipient of the shipment is disclosed.

In conclusion, in the case at hand, the examination of the documents provided in the transfer proceedings highlights the absence of evidence capable of justifying the initiation of sanctioning proceedings, as it has not been established that personal data of the claimant, beyond their name and address, was exposed to unauthorized third parties, given that the package was delivered to a neighbor in the same building where the claimant resided, and there is no record that any data unknown to them was disclosed. The delivery note issued by the courier company, submitted along with the claim, does not serve to substantiate such a circumstance.

In this regard, it should be noted that in the administrative sanctioning field, the principles inspiring criminal law apply, with some nuances but without exceptions, and the principle of the presumption of innocence has full effect, which must govern without exceptions in the sanctioning framework and must be respected in the imposition of any sanctions.

The Constitutional Court in Judgment 76/1990 (STC) considers that the right to the presumption of innocence entails "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal."

In accordance with this approach, Article 53.2 of the LPACAP establishes that, in the case of administrative procedures of a sanctioning nature, the alleged responsible parties shall have the following rights:

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b) The presumption of non-existence of administrative liability until proven otherwise.

As the Supreme Court specified in its Judgment of October 26, 1998, the validity of the principle of presumption of innocence "does not oppose the fact that judicial conviction in a process may be formed on the basis of circumstantial evidence, but for this evidence to be able to undermine said presumption, it must satisfy the following constitutional requirements: the indications must be fully proven – they cannot be mere suspicions – and it must explicitly state the reasoning by which, starting from the proven indications, it has reached the conclusion that the accused committed the infringing conduct, since otherwise, neither the subsumption would be grounded in law nor would there be a way to determine whether the deductive process is arbitrary, irrational, or absurd, that is, whether the right to the presumption of innocence has been violated by considering that the evidentiary activity can be understood as incriminating."

In this regard, it is necessary to distinguish true circumstantial evidence from mere suspicions or conjectures. The Constitutional Court has stated in its Judgment 24/1997 that "the criteria for distinguishing between circumstantial evidence capable of undermining the presumption of innocence and mere suspicions are based on the following: a) The circumstantial evidence must be based on fully proven facts. b) The facts constituting the crime must be deduced from those indications (completely proven facts) through a reasoned mental process in accordance with the rules of human reasoning, as stated in the convicting judgment (SSTC 174/1985, 175/1985, 229/1988, 107/1989, 384/1993, and 206/1994, among others)."

In summary, the principle of presumption of innocence prevents attributing an administrative infringement when no incriminating evidence has been obtained and verified that substantiates the facts motivating the accusation or the involvement of the alleged infringer in them.

In this case, as stated, there are no rational indications that would allow attributing to the claimed party the commission of the infringements of the personal data protection regulations reported, therefore, the right to the presumption of innocence that protects them cannot be considered undermined.

IV

Conclusion

Therefore, based on the aforementioned paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute any responsibility for the exposure of the personal data of the claiming party, in accordance with what has been stated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

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FIRST: TO PROCEED WITH THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to MARNUJUTRANS, S.L. and to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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